

5. **Trust annexed in privity to the person.**—A trust is “*annexed in privity to the person.*” To entitle the *cestui que trust* to relief in equity it is not only necessary that he should prove the creation of the trust and the continuance of the estate supporting it, but should also establish that the assign is not personally privy to the equity, and therefore amenable to the *subpœna*. If it can be shown that the assign had *actual* notice, then, whether he paid a valuable consideration or not, he is plainly privy to the trust, and bound to give it effect; but if actual notice cannot be proved, then, if he be a volunteer, the court will still affect him with notice by presumption of law; but if he be a purchaser for value, the court must believe, until proved to the contrary, that, having paid for the estate, he was ignorant, at the time he purchased, of another’s equitable title. A purchaser for valuable consideration without notice therefore is the only assign against whom privity annexed to the person cannot at the present day be charged (c).

6. **No remedy of the *cestui que trust* but in Chancery.**—The *cestui que trust* “*has no remedy but by a subpœna in Chancery.*”¹ And by chancery must be understood, not exclusively the court of the Lord Chancellor, but any court invested with an equitable jurisdiction, as opposed to com-

(c) See 37 & 38 Vic. c. 78, s. 7, repealed by 38 & 39 Vic. c. 87, s. 129.

¹ The remedy must be in equity; *Dorsey v. Garey*, 30 Md. 489; *McCartney v. Bostwick*, 32 N. Y. 53; and the action is to be brought in the name of the trustee; *Baptist Society v. Hazen*, 100 Mass. 322; *Fitzpatrick v. Fitzgerald*, 13 Gray, 400; *Cox v. Walker*, 26 Me. 504; *Beach v. Beach*, 14 Vt. 28; *Davis v. Charles River Br. R. R. Co.* 11 Cush. 506; *Moore v. Burnet*, 11 Ohio, 334; *Doggett v. Hart*, 5 Fla. 215; but *Stearns v. Palmer*, 10 Met. 35. The trustee or his grantee may protect his legal title against a suit at law by the *cestui que trust*; *Taylor v. King*, 6 Munf. 358; *Nicoll v. Walworth*, 4 Denio, 385; *Reece v. Allen*, 5 Gilm. 241; *Canoy v. Troutman*, 7 Ired. 155. A bill in equity may be maintained to establish a trust, where the jurisdiction over an alleged trustee is likely to terminate; *Price v. Minot*, 107 Mass. 62; *Baylies v. Payson*, 5 Allen, 473. In Pennsylvania the *cestui que trust* may maintain ejectment, even against the trustees; *School v. Dunkleberger*, 6 Barr, 29; *Congregation v. Johnston*, 1 Watts & S. 56. A suit may be brought by a trustee, which he would be stopped to bring in his individual capacity; *Worthy v. Johnson*, 10 Ga. 358; 54 Am. Dec. 393.